

FIRST AMENDMENT TO LEASE AGREEMENT

This First Addendum to Lease Agreement (this “**First Amendment**”) is entered into as of the dates set forth below, but effective for all purposes as of January 1, 2021, by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the “**Lessor**”);

and

GRAZE ACADIANA, LLC, a Louisiana limited liability company, whose mailing address during the term of this Lease shall be 113 Arnould Boulevard, Lafayette, Louisiana 70506, (hereinafter referred to as the “**Lessee**”).

WHEREAS, Lessor and Lessee entered into a certain Lease Agreement effective as of January 1, 2021 (the “**Lease Agreement**”),

WHEREAS, Lessee and Lessor desire to enter into this First Amendment to adjust the Total Monthly Rental Payment and to provide for related matters.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. Section 4.01 of the Lease Agreement is hereby deleted in its entirety and replaced with the following.

“Section 4.01 - Rent:

- A. Premises Base Rent. During the Initial Term, the Lessee shall pay to the Lessor a monthly base rent for the Premises, which is calculated as follows:

Lease Month 1- 4	\$0.00 per square foot of the Premise annually, payable monthly (\$0.00 per month)
Lease Months 5	\$13.00 per square foot of the Premise annually, payable monthly (\$2,823.17 per month)
Lease Month 6	\$6.50 per square foot of the Premise annually, payable monthly (\$1,411.59 per month)

Lessor's Initials _____
Lessee's Initials _____

Lease Months 7-40 \$13.00 per square foot of the Premise
annually, payable monthly (\$2,823.17 per
month)

B. Additional Rent. During the Initial Term, the Lessee shall pay to the Lessor, as additional rent (“**Additional Rent**”), the following amounts.

1. Common Area Maintenance Charges. The Lessee shall pay to the Lessor, the Lessee’s Pro Rata Portion of the Common Area (as hereinafter defined) maintenance charges (“**Common Area Maintenance Charges**”). The Common Area Maintenance Charges shall mean the aggregate of all costs and expenses payable by Lessor in connection with the operation and maintenance of the Common Area in the Boulevard Shopping Center Property, including but not limited to landscaping costs, parking area maintenance costs (including repairing, resurfacing, cleaning and striping), utility costs (including water, sewer, electricity and gas), security system costs, life and safety systems costs, electronic monitoring system costs, compensation (including employment taxes and benefits) of all persons who perform duties connected with the operation and maintenance of the Common Area and any other reasonable costs incurred by the Lessor with respect to the Common Area and not otherwise reimbursed by the Lessee hereunder. Common Area shall mean all areas, space, equipment and special services provided by the Lessor for the common or joint use and benefit of the Lessee and other tenants, their employees, agents, servants, suppliers, customers and other invitees, including but not limited to retaining walls, fences, landscaped areas, parking areas, curbs, driveways, sidewalks, private roads, green spaces, landscape areas, patios, service areas and all common areas and other areas all as shown on the site plan attached hereto as *Schedule B*.

2. Tax and Insurance Charges. The Lessee shall pay to the Lessor the Lessee’s Pro Rata Portion of the annual charges incurred by the Lessor for taxes and insurance coverage for the Boulevard Shopping Center Property (“**Taxes and Insurance Charges**”). Tax charges shall include all real property taxes, personal property taxes, improvement bonds and other charges or assessments which are levied upon or with respect to the Boulevard Shopping Center Property, including any increase in such taxes or a reassessment of the value of the Boulevard Shopping Center Property, license fees, or other taxes or fees levied in connection with the Lessor’s leasing or rental of the Boulevard Shopping Center Property, but shall not include any federal or state income tax imposed upon the Lessor. Insurance charges shall include the cost of any insurance obtained by the Lessor in connection with the Boulevard Shopping Center Property, including but not limited to fire, casualty and liability insurance policies.

3. Payment of Additional Rent. Beginning on February 1, 2021 and continuing on the first day of each calendar month thereafter, the Lessee shall pay to the Lessor, as Additional Rent, one twelfth of the Lessee’s Pro Rata Portion of the Common Area Maintenance Charges and one twelfth of the Lessee’s Pro Rata Portion of the Taxes and Insurance Charges as set forth herein. The parties agree that the Common Area Maintenance Charges for the period

Lessor’s Initials _____
Lessee’s Initials _____

beginning on February 1, 2021 and ending February 28, 2022 is \$2.10 per square foot of the Premises annually, payable monthly as provided herein. The parties agree that the Taxes and Insurance Charges for the period beginning on February 1, 2021 and ending February 28, 2022 is \$1.85 per square foot of the Premises annually, payable monthly as provided herein.

The Total Monthly Rental Payment Amount for month **one (1)** of the Initial Term for the Premises shall be calculated as follows:

Base Rent	\$ 0.00
Common Area Maintenance Charges	\$ 0.00
Tax and Insurance Charges	\$ 0.00
Total Monthly Rental Payment	
(Month 1)	\$ 0.00

The Total Monthly Rental Payment Amount for month **two (2) through four (4)** of the Initial Term for the Premises shall be calculated as follows:

Base Rent	\$ 0.00
Common Area Maintenance Charges	\$ 456.05
Tax and Insurance Charges	\$ 401.76
Total Monthly Rental Payment	
(Month 2-4)	\$ 857.80

The Total Monthly Rental Payment Amount for month **five (5)** of the Initial Term for the Premises shall be calculated as follows:

Base Rent	\$ 2,823.17
Common Area Maintenance Charges	\$ 456.05
Tax and Insurance Charges	\$ 401.76
Total Monthly Rental Payment	
(Month 5)	\$ 3,680.96

Lessor's Initials _____
Lessee's Initials _____

The Total Monthly Rental Payment Amount for **month six (6)** of the Initial Term for the Premises shall be calculated as follows:

Base Rent	\$ 0.00
Common Area Maintenance Charges	\$ 456.05
Tax and Insurance Charges	\$ 401.76
Total Monthly Rental Payment	
(Month 6)	\$ 857.80

The Total Monthly Rental Payment Amount for month **seven (7) through Forty (40)** of the Initial Term for the Premises shall be calculated as follows:

Base Rent	\$ 2,823.17
Common Area Maintenance Charges	\$ 456.05
Tax and Insurance Charges	\$ 401.76
Total Monthly Rental Payment	
(Month 7-40)	\$ 3,680.96

Notwithstanding anything contained herein to the contrary, beginning in the second year of the Initial Term, Lessor may, if, in Lessor's discretion, the same is necessary to cover an increase in Taxes and Insurance charges, increase the amount of the Common Area Maintenance Charges and/or Taxes and Insurance Charges for any calendar year thereafter by providing written notice of the same to the Lessee; provided, however that any such increase shall not exceed the prior calendar year actual Common Area Maintenance Charges and/or Taxes and Insurance Charges by more than five percent (5%).

4. Payment of Rent. The monthly payment of the Base Rent and Additional Rent for the Premises (collectively, the "**Total Monthly Rental Payment**") shall be due on the first day of each calendar month. The Lessor and Lessee hereby acknowledge and agree that the Lessee shall be obligated to make monthly Additional Rent payments beginning with the Commencement Date.

In the event the Lessor does not receive the Total Monthly Rental Payment on or before the fifth day of the calendar month, a late fee in the fixed amount of \$100.00 plus a daily charge beginning on the sixth day of the calendar month in the amount of \$25.00 per day shall be charged and shall be due and payable by the Lessee for each late payment.

Lessor's Initials _____
 Lessee's Initials _____

All rental payments due hereunder shall be made to the Lessor by mailing the same to 101 Arnould Boulevard, Lafayette, Louisiana 70506 or such other place, as the Lessor shall designate in writing. Notwithstanding the foregoing, Lessor shall have the right to require at any time during the Initial Term that the Total Monthly Rental Payment and any other payments due to Lessor be paid to Lessor via electronic funds transfer, automatic wire transfer, ACH payment transfer, or other automated electronic payment method for deposit into and credit to a bank account designated in writing by Lessor.

2. The Lessor and the Lessee hereby agree that the terms and conditions of this First Amendment shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants of On The Boulevard Shopping Center.
3. All capitalized terms used herein and not otherwise specifically defined herein shall have the meanings ascribed to those terms in the Lease.
4. The remainder of the terms of the Lease Agreement not specifically amended by this First Amendment shall remain and be in full force and effect.
5. This First Amendment may be executed in two or more counterparts each of which, when executed and delivered as prescribed, shall constitute an original.

Lessor's Initials _____
Lessee's Initials _____

THUS, DONE AND SIGNED as of the date set forth below by the Lessor, but effective as of January 1, 2021.

LESSOR:

BELLE REALTY OF LAFAYETTE, L.L.C.,
a Louisiana limited liability company

By: _____
Printed Name: _____
Its: _____
Dated: _____

THUS, DONE AND SIGNED as of the date set forth below by the Lessor, but effective as of January 1, 2021.

LESSEE:

GRAZE ACADIANA, LLC,
a Louisiana limited liability company

By: _____
Printed Name: _____
Its: _____
Dated: _____

Lessor's Initials _____
Lessee's Initials _____